

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 25, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at the Cheyenne Civic Center and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited. [Clerk’s note: Mr. Esquibel attended the meeting via electronically]

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mayor Collins noted agenda item #17(a) was inadvertently placed on the consent agenda. Upon request by Mr. Johnson, and pursuant to support received by Dr. Aldrich and Mr. Cook, agenda item #17(a) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 11, 2021. Motion (per Consent Agenda) carried.

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located east of and adjacent to South Greeley Highway between High Plains Road and Terry Ranch Road. Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agricultural and Rural Residential to AG Agricultural and HI Heavy Industrial for land located east of and adjacent to South Greeley Highway between High Plains Road and Terry Ranch Road. Eric Crosby inquired on the industrial use planned for the land. Brad Emmons, AVI PC, agent for the applicant, advised the proposed zone will allow the land to be used for a data center project, noting it is not overall industrial in nature. Dr. Rinne moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI (Light Industrial) to MR (Medium-Density Residential) for property generally located northeast of the intersection of Pebrican Avenue and East 2nd Street. Dr. Rinne moved to approve on second reading, seconded by Mr. Cook. Mr. Segrave declared a conflict of interest due to a business relationship and did not participate in

discussion or voting. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave who didn’t vote.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne, changing the zoning classification from MR (Medium-Density Residential) to CB (Community Business) for property generally located northeast of the intersection of Carbon Avenue and East 13th Street. Dr. Rinne moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Bison Business Park, a plat of portions of Sections 28, 29, and 32, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located east of and adjacent to South Greeley Highway between High Plains Road and Terry Ranch Road). Dr. Rinne moved to adopt, seconded by Mr. Cook. Dr. Rinne moved to postpone to February 8, 2021, seconded by Mr. Cook. Motion to postpone carried. Voting “yes” – all members of the governing body.

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Sweetgrass, 5th Filing, a subdivision of a portion of the N½ of Section 16, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located south of East College Drive and adjacent to Sweetgrass Drive. Dr. Rinne moved to adopt with revised final plat map dated January 19, 2021, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#6118)

[CA] RESOLUTION – Adopting an amendment to the Future Land Use Map in PlanCheyenne, amending the land use category for property generally located east of South Greeley Highway at Terry Ranch Road from Agricultural and Mixed-Use Employment to Industrial and amending the Urban Service Boundary and Natural and Cultural Resources Area. Motion (per Consent Agenda) carried. (#6119)

RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant Application under the Assistance to Firefighters Grant Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of purchasing a fire engine – referred to Finance Committee. Reporting for Finance Committee, Mr. Roybal advised the resolution had been reviewed under other items for the agenda at the January 19, 2021 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. Roybal moved to adopt, seconded by Mr. Cook. Cheyenne Fire and Rescue Interim Chief John Kopper provided information on the resolution and explained they are requesting a grant to replace the current Engine #1 which is in dire need of replacement and noted the grant requires a 10% match. Upon inquiry, Interim Chief Kopper explained it is recommended that front line engines should be no older than 10 years old. Motion carried. Voting “yes” – all members of the governing body. (#6120)

RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant Application under the Assistance to Firefighters Grant Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of purchasing new automotive

extrication equipment for all front line apparatus for Cheyenne Fire Rescue – referred to Finance Committee. Mr. Roybal advised the resolution had been reviewed under other items for the agenda at the January 19, 2021 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. Roybal moved to adopt, seconded by Mr. White. Cheyenne Fire and Rescue Interim Chief John Kopper explained the grant application is a joint regional application and is for extraction equipment. Motion carried. Voting “yes” – all members of the governing body. (#6121)

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for Office on Violence Against Women OVW-2021-37003 Improving Criminal Justice Responses to Domestic Violence, Dating Violence, Sexual Assault and Stalking Grant Program CFDA Number 16.590-Grants to Encourage Arrests Policies and Enforcement of Protection Orders Program – referred to Finance Committee. (Sponsor – Mr. Roybal)

Preliminary Plat for Campstool Addition, 5th Filing, generally located north of Venture Drive/Interstate 80 Service Road east of Industry Drive. Upon inquiry, Kris Jones, City Clerk, explained item #15 is on the consent agenda for referral to the Finance Committee. Dr. Rinne moved to acknowledge Planning Commission’s recommendation to approve with Planning Commission recommendations #1 – 3, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

Letter of Agreement between the City of Cheyenne, Police Department, and the United States Department of Justice, Drug Enforcement Administration, for locating and eradicating illicit cannabis, and investigating and prosecuting those cases. Sergeant Tim Meyrick, Cheyenne Police Department, advised the Police Department is in support of the agreement and explained the funds can be used for overtime, training and approved equipment purchases. Upon inquiry, Sergeant Meyrick explained the annual dollar amount for cannabis enforcement doesn’t usually exceed the agreement amount. Mr. Roybal moved to approve in the amount of \$65,000.00, seconded by Mr. Segrave. Upon further inquiry, Sergeant Meyrick explained the primary purpose of the agreement is for cannabis eradication, but it can apply to other types of illegal substances that may be encountered during cannabis eradication. Comment was made noting cannabis is legal in some form in 39 states. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. (#7274)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, and West Edge Collective LLC, for FY 2021 MPO Public Engagement and Web Support Services (MPO Federal funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$31,200.00). (#7275)

[CA] Professional Services Agreement between the City of Cheyenne and GLM Design Group for the submission of two Building Resilient Infrastructure and Communities (BRIC) Capability- and Capacity- Building Funding grant applications to FEMA for the City of Cheyenne (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$32,000.00). (#7276)

[CA] Professional Services Agreement between the City of Cheyenne and Little Joe Company, LLC, for the Janitorial Services for City of Cheyenne Facilities Project (General Fund, Fleet Maintenance Fund & Solid Waste Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and L and L, Inc. for the provision of golf services at the Airport Golf Clubhouse – referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and L and L, Inc. for the use of the Kingham Prairie View Clubhouse and the provision of golf services at the Kingham Prairie View Golf Course – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District Number One (LCSD #1) to provide LCSD #1 use of city owned softball fields for practices and competitions – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and GLM Design Group for drainage engineering support (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7206 between the City of Cheyenne and Inman Roofing, Inc., to replace wood nailer on Cheyenne Aquatic Center roof (General Fund-CIP Account). Motion (per Consent Agenda) carried (in an amount not to exceed \$3,475.10). (#7206)

[CA] Contract Modification #1 to Contract #7257 between the City of Cheyenne and Clean Air and Water Systems, LLC, for the Happy Jack Landfill Phase 2, Cells 1 and 2 and Cell 3 Excavation Earthworks project for additional labor to install liner in the leachate trench (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7258 between the City of Cheyenne and Northwest Linings & Geotextile Products Inc., for the Happy Jack Landfill Phase 2, Cells 1 and 2 and Cell 3 Excavation Earthworks project for additional liner and shipping cost for the leachate trench (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #6798 between the City of Cheyenne and Trihydro Corporation to extend the Environmental Monitoring at the Happy Jack Landfill for an additional three years (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-9-21 for a contract between the City of Cheyenne and 4 Quarters Excavation & Development for the East Cheyenne Community Park-Parking Lot and Trailhead Construction Project (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$117,499.00). (#7277)

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Reappointment of Gregg Jones to the Brownfields Revolving Loan Committee. Upon inquiry, it was advised Mr. Jones has served on the Brownfields Revolving Loan Committee for approximately 3 years. Mr. Roybal moved to approve, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

Appointment of Don Pierson to the Police Civil Service Commission. Mr. Segrave moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

Under other business:

Mr. White noted the annual audit report by McGee, Hearne and Paiz, LLP was heard recently by members of the governing body and resulted in a clean audit with no recommendations. Mr. White expressed appreciation to the City Treasurer’s offices under the leadership of City Treasurer Robin Lockman. Mayor Collins congratulated Ms. Lockman for the successful audit.

Mr. Johnson expressed condolences for the recent passing of prior city employee Scott Smith. Mayor Collins also expressed condolences.

Mr. Laybourn reported on the ribbon cutting ceremony held at the Cheyenne Aquatic Center for their reopening. He also commented on the Civic Center and how the Cheyenne Symphony Orchestra has been able to continue performing at this venue, noting however, the need for the facility to be renovated. Mayor Collins expressed appreciation to Civic Center staff for preparing the venue for various uses.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:29 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
January 31, 2021